

ORDINANCE NO. 10-034

AN ORDINANCE OF THE ST. LUCIE BOARD OF COUNTY COMMISSIONERS AMENDING THE ST. LUCIE COUNTY LAND DEVELOPMENT CODE REGARDING SOLAR ENERGY BY AMENDING SECTION 2.00.00 DEFINITIONS; BY AMENDING SECTION 3.01.03 ZONING DISTRICTS; BY AMENDING SECTION 4.03.03 LIMITATIONS ON LAND USE APPLICATIONS AND 4.03.05 RESEARCH AND EDUCATION PARK OVERLAY ZONE USE LIMITATIONS; BY CREATING SECTION 7.10.28 SOLAR ENERGY SUPPLEMENTAL STANDARDS; BY AMENDING SECTION 8.00.03 PARTICULAR PERMITTED ACCESSORY STRUCTURE AND USES IN RESIDENTIAL, AGRICULTURAL, AND PLANNED UNIT DEVELOPMENTS; PROVIDING FOR CONFLICTING PROVISIONS, SEVERABILITY AND APPLICABILITY; PROVIDING FOR FILING WITH THE DEPARTMENT OF STATE; PROVIDING FOR ADOPTION AND CODIFICATION AND AN EFFECTIVE DATE

WHEREAS, the Board of County Commissioners of St. Lucie County, Florida, has made the following determinations:

1. The Board of County Commissioners has declared the utilization of sustainable practices a matter of public policy. This includes a commitment to protecting natural resources and providing an environment to reduce reliance and expenditures on non-renewable resources in the County.
2. Solar energy is an abundant, renewable, and nonpolluting energy resource and its conversion to electricity will reduce our dependence on non-renewable energy resources and decrease the air and water pollution resulting from conventional energy resources.
3. On August 1, 1990, the Board of County Commissioners of St. Lucie County, Florida, adopted the St. Lucie County Land Development Code and has adopted amendments to the Land Development Code through certain ordinances.
4. On September 8, 2009, the Board of County Commissioners adopted a Greenprint plan that promotes an increase in renewable energy resources and low carbon emitting electrical power to guide the County towards a sustainable future.
5. On September 16, 2010, the Local Planning Agency/Planning and Zoning Commission held a public hearing on the proposed ordinance after publishing

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JOSEPH E. SMITH, CLERK OF THE CIRCUIT COURT
SAINT LUCIE COUNTY
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1 notice in the St. Lucie News Tribune at least 10 days prior to the hearing and
2 recommended that the proposed ordinance be approved.

3
4 6. On October 19, 2010, this Board held its first public hearing on the proposed
5 ordinance, after publishing a notice of such hearing in the St. Lucie News Tribune
6 on October 5, 2010.

7
8 7. On November 9, 2010, this Board held its second public hearing on the proposed
9 ordinance, after publishing a notice of such hearing in the St. Lucie News Tribune
10 on November 1, 2010.

11
12 8. The proposed amendments to the St. Lucie County Land Development Code are
13 consistent with the general purpose, goals, and objectives of the St. Lucie County
14 Comprehensive Plan and are in the best interest of the health, safety and public
15 welfare of the citizens of St. Lucie County, Florida.

16
17 **NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners of**
18 **St. Lucie County, Florida:**

19
20 The St. Lucie County Land Development Code is hereby amended by deleting the
21 following words shown in strike-through type and adding the words shown in underlined
22 type:

23
24 **PART A.**

25
26 THE SPECIFIC AMENDMENTS TO THE ST. LUCIE COUNTY LAND DEVELOPMENT
27 CODE CAUSING THE CODE TO READ AS FOLLOWS:

28
29 **CHAPTER II DEFINITIONS**

30
31 **2.00.00. DEFINITIONS**

32
33 *Height:* The vertical distance between the minimum finished grade and the highest
34 finished main roof surface in the case of flat roofs or shed roofs, the deck line of a
35 mansard roof and the average distance between the eaves and the ridge of sloped roof
36 with a pitch greater than a 4:12 ratio. For the purpose of this Code, minimum finished
37 grade shall be that elevation, for both residential and nonresidential uses, required to
38 meet minimum flood protection regulations. For the purposes of this code, roof
39 mounted solar energy panels are exempt from the building height limitations.

40
41 Solar Access: The access of a solar energy system to direct sunlight.
42

1 Solar Generation Station: An energy generation facility comprised of one or more
2 freestanding, ground mounted devices that capture solar energy and convert it to
3 electrical energy for use in locations other than where it is generated. Solar generation
4 stations typically utilize photovoltaic solar cells, but can also be combinations of light
5 reflectors, concentrators, and heat exchangers. A solar generation station is also known
6 as a solar plant, solar generation plant, solar farm, solar power plant, or solar thermal
7 power plant.

8
9 Solar Energy System: Any device or combination of devices or elements which rely
10 upon direct sunlight as an energy source, including but not limited to any substance or
11 device which collects sunlight for use in the heating or cooling of a structure or building,
12 the heating or pumping of water, or the generation of electricity. A solar energy system
13 may be used for purposes in addition to the collection of solar energy. These uses
14 include, but are not limited to, serving as a structural member or part of the roof of a
15 building or structure and serving as a window or wall. A solar energy system may be
16 mounted on the building or on the ground and is not the principal use of the property.

17 18 **CHAPTER III ZONING DISTRICTS**

19 20 **3.01.03. Zoning Districts**

21
22 Solar energy systems, subject to the requirements of Section 7.10.28, are hereby added
23 to the list of accessory uses in all zoning districts.

24 25 **A. AG-1 AGRICULTURAL - 1**

26 27 **1. Purpose**

28
29 *Purpose.* The purpose of this district is to provide and protect an environment suitable
30 for productive commercial agriculture, together with such other uses as may be
31 necessary to and compatible with productive agricultural surroundings. Residential
32 densities are restricted to a maximum of one (1) dwelling unit per gross acre. The
33 number in "()" following each identified use corresponds to the SIC code reference
34 described in Section 3.01.02(B). The number 999 applies to a use not defined under the
35 SIC code but may be further defined in Section 2.00.00 of this Code.

36 37 **2. Permitted Uses**

- 38 a. Agricultural production - crops (01)
- 39 b. Agricultural production - livestock & animal specialties (02)
- 40 c. Agricultural services (07)
- 41 d. Family day care homes. (999)

1 e. Family residential homes provided that such homes shall not be located within a
2 radius of one thousand (1,000) feet of another existing such family residential home
3 and provided that the sponsoring agency or Department of Health and Rehabilitative
4 Services (HRS) notifies the Board of County Commissioners at the time of home
5 occupancy that the home is licensed by HRS. (999)

6 f. Fishing, hunting & trapping (09)

7 g. Forestry (08)

8 h. Kennels. (0752)

9 i. Research Facilities, Noncommercial (8733)

10 j. Riding stables. (7999)

11 k. Single-family detached dwellings. (999)

12
13 3. *Lot Size Requirements.* Lot size requirements shall be in accordance with Table 1 in
14 Section 7.04.00.

15
16 4. *Dimensional Regulations.* Dimensional requirements shall be in accordance with
17 Table 1 in Section 7.04.00.

18
19 5. *Off-street Parking and Loading Requirements.* Off-street parking and loading
20 requirements are subject to Section 7.06.00.

21
22 6. *Landscaping Requirements.* Landscaping requirements are subject to Section
23 7.09.00.

24
25 7. *Conditional Uses.*

26 a. Agricultural labor housing. (999)

27 b. Aircraft storage and equipment maintenance. (4581)

28 c. Airports and flying, landing, and takeoff fields. (4581)

29 d. Family residential homes located within a radius of one thousand (1,000) feet of
30 another such family residential home. (999)

31 e. Farm products warehousing and storage. (4221/4222)

32 f. Gasoline service stations. (5541)

33 g. Industrial wastewater disposal. (999)

34 h. Manufacturing:

35 (1) Agricultural chemicals (287)

36 (2) Food & kindred products (20)

37 (3) Lumber & wood products, except furniture (24)

38 i. Mining and quarrying of nonmetallic minerals, except fuels. (14)

39 j. Retail trade:

40 (1) Farm equipment and related accessories. (999)

41 (2) Apparel & accessory stores. (56)

42 k. Sewage disposal subject to the requirements of Section 7.10.13. (999)

- l. Telecommunication Towers - subject to the standards of Section 7.10.23 (999)
- m. Camps - sporting and recreational. (7032)
- n. Solar generation station subject to the requirements of Section 7.10.28 (999).

8. *Accessory Uses.* Accessory uses are subject to the requirements of Section 8.00.00, and include the following:

- a. Mobile homes subject to the requirements of Section 7.10.05.
- b. Retail trade and wholesale trade - subordinate to the primary authorized use or activity.
- c. Guest house subject to the requirements of Section 7.10.04. (999)
- d. Solar energy system subject to the requirements of Section 7.10.28 (999).

B. *AGRICULTURAL - 2.5.*

1. *Purpose.* The purpose of this district is to provide and protect an environment suitable for productive commercial agriculture, together with such other uses as may be necessary to and compatible with productive agricultural surroundings. Residential densities are restricted to a maximum of one (1) dwelling unit per two and one-half (2.5) gross acres. The number in "()" following each identified use corresponds to the SIC code reference described in Section 3.01.02(B). The number 999 applies to a use not defined under the SIC code but may be further defined in Section 2.00.00 of this Code.

2. *Permitted Uses:*

- a. Agricultural production - crops. (01)
- b. Agricultural production - livestock and animal specialties. (02)
- c. Agricultural services. (07)
- d. Family day care homes. (999)
- e. Family residential homes provided that such homes shall not be located within a radius of one thousand (1,000) feet of another existing such family residential home and provided that the sponsoring agency or Department of Health and Rehabilitative Services (HRS) notifies the Board of County Commissioners at the time of home occupancy that the home is licensed by HRS. (999)
- f. Fishing, hunting and trapping. (09)
- g. Forestry. (08)
- h. Kennels. (0752)
- i. Research Facilities, Noncommercial. (8733)
- j. Riding stables. (7999)
- k. Single-family detached dwellings. (999)

- 1 3. *Lot Size Requirements.* Lot size requirements shall be in accordance with Section
2 7.04.00.
3
- 4 4. *Dimensional Regulations.* Dimensional requirements shall be in accordance with
5 Section 7.04.00.
6
- 7 5. *Off-Street Parking and Loading Requirements.* Off-street parking and loading
8 requirements are subject to Section 7.06.00.
9
- 10 6. *Landscaping Requirements.* Landscaping requirements are subject to Section
11 7.09.00.
12
- 13 7. *Conditional Uses:*
14 a. Agricultural labor housing. (999)
15 b. Aircraft storage and equipment maintenance. (4581)
16 c. Airports and flying, landing, and takeoff fields. (4581)
17 d. Family residential homes located within a radius of one thousand (1,000) feet of
18 another such family residential home. (999)
19 e. Farm products warehousing and storage. (4221/4222)
20 f. Gasoline service stations. (5541)
21 g. Industrial wastewater disposal. (999)
22 h. Manufacturing:
23 (1) Agricultural chemicals. (287)
24 (2) Food and kindred products. (20)
25 (3) Lumber and wood products, except furniture. (24)
26 i. Mining and quarrying of nonmetallic minerals, except fuels. (14)
27 j. Radio, television, and microwave communication stations and towers. (999)
28 k. Retail trade:
29 (1) Farm equipment and related accessories. (999)
30 (2) Apparel and accessory stores. (56)
31 l. Sewage disposal subject to the requirements of Section 7.10.13. (999)
32 m. Camps - sporting and recreational. (7032)
33 n. Outdoor shooting ranges, providing site plan approval is obtained according to
34 the provisions of Sections 11.02.07 through 11.02.09 and Section 7.10.19 of this
35 Code.
36 o. Solar generation station subject to the requirements of Section 7.10.28 (999).
37
- 38 8. *Accessory Uses.* Accessory uses are subject to the requirements of Section
39 8.00.00, and include the following:
40
41 a. Mobile homes subject to the requirements of Section 7.10.05.

- b. Retail trade and wholesale trade - subordinate to the primary authorized use or activity.
- c. Guest house subject to the requirements of Section 7.10.04. (999)
- d. Solar energy system subject to the requirements of Section 7.10.28 (999).

C. AG-5 AGRICULTURAL - 5.

1. *Purpose.* The purpose of this district is to provide and protect an environment suitable for productive commercial agriculture, together with such other uses as may be necessary to and compatible with productive agricultural surroundings. Residential densities are restricted to a maximum of one (1) dwelling unit per five (5) gross acres. The number in "()" following each identified use corresponds to the SIC code reference described in Section 3.01.02(B). The number 999 applies to a use not defined under the SIC code but may be further defined in Section 2.00.00 of this Code.

2. *Permitted Uses:*

- a. Agricultural production - crops. (01)
- b. Agricultural production - livestock and animal specialties. (02)
- c. Agricultural services. (07)
- d. Family day care homes. (999)
- e. Family residential homes provided that such homes shall not be located within a radius of one thousand (1,000) feet of another existing such family residential home and provided that the sponsoring agency or Department of Health and Rehabilitative Services (HRS) notifies the Board of County Commissioners at the time of home occupancy that the home is licensed by HRS. (999)
- f. Fishing, hunting and trapping. (09)
- g. Forestry. (08)
- h. Kennels. (0752)
- i. Research Facilities, Noncommercial. (8733)
- j. Riding stables. (7999)
- k. Single-family detached dwellings. (999)
- l. Telecommunication towers - subject to the standards of Section 7.10.23. (999)

3. *Lot Size Requirements.* Lot size requirements shall be in accordance with Section 7.04.00.

4. *Dimensional Regulations.* Dimensional requirements shall be in accordance with Section 7.04.00.

- 1 5. *Off-Street Parking and Loading Requirements.* Off-street parking and loading
2 requirements are subject to Section 7.06.00.
3
- 4 6. *Landscaping Requirements.* Landscaping Requirements are subject to Section
5 7.09.00.
6
- 7 7. *Conditional Uses:*
8
- 9 a. Agricultural labor housing. (999)
10 b. Aircraft storage and equipment maintenance. (4581)
11 c. Airports and flying, landing, and take-off fields. (4581)
12 d. Family residential homes located within a radius of one thousand (1,000) feet of
13 another such family residential home. (999)
14 e. Farm products warehousing and storage. (4221/4222)
15 f. Gasoline service stations. (5541)
16 g. Industrial wastewater disposal. (999)
17 h. Manufacturing:
18 (1) Agricultural chemicals. (287)
19 (2) Food and kindred products. (20)
20 (3) Lumber and wood products, except furniture. (24)
21 i. Mining and quarrying of nonmetallic minerals, except fuels. (14)
22 j. Retail trade:
23 (1) Farm equipment and related accessories. (999)
24 (2) Apparel and accessory stores. (56)
25 k. Sewage disposal subject to the requirements of Section 7.10.13. (999)
26 l. Camps - sporting and recreational. (7032)
27 m. Off-Road Vehicle Parks, except go-cart raceway operation or rentals (7999),
28 subject to the requirements of Section 7.10.21. (999)
29 n. Outdoor shooting ranges, providing site plan approval is obtained according to
30 the provisions of Sections 11.02.07 through 11.02.09 and Section 7.10.19 of this
31 Code.
32 j. Solar generation station subject to the requirements of Section 7.10.28 (999).
33
- 34 8. *Accessory Uses.* Accessory uses are subject to the requirements of Section
35 8.00.00, and include the following:
36
- 37 a. Mobile homes subject to the requirements of Section 7.10.05.
38 b. Retail trade and wholesale trade - subordinate to the primary authorized use or
39 activity.
40 c. Guest house subject to the requirements of Section 7.10.04. (999)
41 d. Solar energy system subject to the requirements of Section 7.10.28.(999)
42

1 **W. U UTILITIES.**

2
3 1. *Purpose.* The purpose of this district is to provide and protect an environment
4 suitable for utilities, transportation, and communication facilities, together with such
5 other uses as may be compatible with utility, transportation, and communication
6 facility surroundings. The number in "()" following each identified use corresponds to
7 the SIC code reference described in Section 3.01.02(B). The number 999 applies to
8 a use not defined under the SIC code but may be further defined in Section 2.00.00
9 of this code.

10
11 2. *Permitted Uses:*

- 12
13 a. Air transportation services (451,452)
14 b. Agriculture, including farms, groves, and ranches. (01,02)
15 c. Communication. (48)
16 d. Electric services (491)
17 e. Electric transmission rights-of-way. (491)
18 f. Gas pipeline rights-of-way. (492)
19 g. Gas production and distribution (492)
20 h. Industrial wastewater disposal. (999)
21 i. Railroad, rapid rail transit, & street railway transportation. (40,41)
22 j. Sanitary services (495)
23 k. Transportation services (47)
24 l. Telecommunication towers - subject to the standards of Section 7.10.23 (999)
25 m. Water supply and irrigation systems. (494,497)
26 n. Water transportation (44)

27
28 3. *Lot Size Requirements.* Lot size requirements shall be in accordance with Section
29 7.04.00.

30
31 4. *Dimensional Regulations.* Dimensional requirements shall be in accordance with
32 Section 7.04.00.

33
34 5. *Off-street Parking and Loading Requirements.* Off-street parking and loading
35 requirements are subject to Section 7.06.00.

36
37 6. *Landscaping Requirements.* Landscaping requirements are subject to Section
38 7.09.00.

39
40 7. *Conditional Uses:*

- 41
42 a. Airports. (458)

- b. Electric generation plants. (491)
- c. Gas production plants. (492)
- d. Land clearing and yard trash recycling operations - subject to the provisions of Section 7.10.12. (999)
- e. Natural or manufactured gas storage and distribution points. (492)
- f. Protective functions and their related activities - Correctional institutions (9223)
- g. Solid waste disposal. (4953)
- h. Outdoor shooting ranges, providing site plan approval is obtained according to the provisions of Sections 11.02.07 through 11.02.09 and Section 7.10.19 of this Code. (999)
- i. Solar generation station subject to the requirements of Section 7.10.28. (999)

8. *Accessory Uses.*

Accessory uses are subject to the requirements of Section 8.00.00 and include the following:

- a. Automobile and truck rental services.
- b. Restaurants. (Including the sale of alcoholic beverages for on premises consumption only.) (999)
- c. Solar energy system subject to the requirements of Section 7.10.28.(999)

EE. *PTV (PLANNED TOWN OR VILLAGE)*

2. *Standards and Requirements.* Standards and requirements for Planned Town or Villages shall be as follows:

o. Open space and Countryside Standards.

(2) Open Space and Countryside Requirements.

- iii. Where Section 3.01.03.EE.2.b. provides that up to 10% of a new Town or Village may be designated Open Space in lieu of Countryside, this allowance may be fulfilled by land that is restricted to a combination of the following Open Space components; however, all Fringe or Rural areas that are not designated in the regulating plan as reserved for an Open Space or Countryside component shall be limited in the future to Countryside uses:

8) Solar generation station, subject to the supplemental standards in Section 7.10.28.

1 **CHAPTER IV SPECIAL DISTRICTS**

2
3 **4.03.00. RESEARCH AND EDUCATION PARK - OVERLAY ZONE**

4
5 Section 4.03.00 is hereby amended as follows:

6
7 Section 4.03.03. Limitations on Land Use Applications.

8
9 Any Future Land Use Map Change within the Overlay Zone shall be to Special District
10 (SD - Research and Education Park). All applications for a change in zoning within the
11 Research and Education Park Overlay Zone shall be to Planned Non-Residential
12 Development (PNRD). All building permit applications shall be reviewed and approved
13 by the Growth Management Department Director or their assigns prior to the issuance
14 of construction authorizations within the Research and Education Park Overlay Zone.

15
16 The appropriate location and mix of uses will be determined through the planned
17 development process in a manner that adheres to the guidelines and standards set forth
18 in this overlay zone and the Research and Education Park Master Plan. Uses are to be
19 segregated as to intensity and are to ensure compatibility with lands outside the overlay
20 zone.

21
22 The following sub-zones are created to identify the type of permitted, conditional and
23 accessory uses allowed within Zone A and Zone B. The specific uses are identified
24 below and Section 4.03.05.

LAND USE OPTIONS

ZONE A	ZONE B
RESEARCH EDUCATION ZONE	RESEARCH AGRICULTURE ZONE
PNRD: Allows agriculture, office, research, and institutional and light manufacturing (as identified under 4.03.05) uses.	PNRD: Allows agriculture and research (as identified under the permitted uses identified in Section 4.03.05). No conditional uses shall be allowed within the Research Zone without an amendment to this section.

25
26 **4.03.05. Research and Education Park Overlay Zone Use Limitations.**
27

1 The purpose of these regulations is to provide and protect an environment suitable for
2 agriculture, education, and research with such other uses as may be necessary to and
3 compatible with these primary uses. Uses are identified by their SIC (Standard Industrial
4 Classification) Code (00). The identified use shall only be allowed when consistent with
5 the properties Future Land Use Designation and the Zone A and B Land Use Options
6 set forth in Section 4.03.03 and the Research and Education Park Master Plan.

7
8 **A. Permitted Uses.** (Notes: The uses below include the life sciences with a focus on
9 agriculture and education)

10
11 The permitted uses in Zone A and Zone B shall be:

- 12
13 1.) Agriculture Production – crops (SIC 01)
14 2.) Animal Aquaculture (SIC 0273)
15 3.) Education Services and Facilities (SIC 82)
16 (Notes: Includes establishments engaged in non-commercial agriculture and
17 biological research and development; such as, agriculture, food and medicine)
18

19 The permitted uses in Zone A only shall included:

- 20
21 1.) Research, Development, and Testing Services (SIC 873)
22 (Notes: Includes establishments engaged in commercial and manufacturing
23 physical and biological research and development; such as, agriculture, food and
24 medical research, and x-ray machine inspection services)
25

26 **B. Conditional Uses.** (Notes: The uses below primarily include those associated with
27 the manufacturing and support of the life sciences or the Park in general, such as
28 business services.)
29

30 The conditional uses within Zone A shall be:

- 31
32 1.) Manufacturing:
33 a. Food & kindred products (SIC 20)
34 b. Drugs (SIC 283)
35 c. Soap, Detergents, and Cleaning Preparations; Perfumes, Cosmetics, and
36 other Toilet Preparations (SIC 284)
37 d. Agricultural chemicals (SIC 287)
38 e. Measuring, Analyzing, and Controlling Instruments; Photographic, Medical
39 and Optical Goods; Watches and Clocks (SIC 38)
40 2.) Financial Institutions (SIC 60 and 61)
41 3.) Business Services (SIC 73)
42 4.) Solar generation station subject to the requirements of Section 7.10.28. (999)

1 No conditional uses shall be allowed within Zone B.

2
3 The conditional uses within Zone B shall be:

4
5 1.) Solar generation station subject to the requirements of Section 7.10.28. (999)

6
7 C. Accessory Uses. Accessory uses are subject to the requirements of Section 8.00.00,
8 and include the following:

9
10 1.) Residential units may be permitted as accessory uses to educational facilities,
11 when approved through the Planned Development process.

12 2.) Solar energy system subject to the requirements of Section 7.10.28 (999).

13
14
15 **CHAPTER VII DEVELOPMENT DESIGN AND IMPROVEMENT STANDARDS**

16
17 7.00.00. General Provisions

18
19 7.10.00. Supplemental Standards.

20
21 Section 7.10.00 is hereby amended to create a new Section 7.10.28 "Solar Energy" as
22 follows:

23
24 7.10.28 Solar Energy

25
26 The following provisions are intended to facilitate the commercial generation and
27 distribution of solar power and the use of on-site solar energy systems to meet the
28 energy demands of buildings and support facilities in the unincorporated County. All
29 Solar equipment and devices shall comply with Florida Statutes and shall be
30 certificated by the Florida Solar Energy Commission.

31
32 A. Solar Generation Station. In addition to other applicable sections of this Code, a
33 solar generation station shall be subject to the following provisions:

34
35 1. Solar generation stations shall require submittal of a Major Site Plan application
36 concurrent with a Conditional Use Permit, when required. The development shall
37 be subject to the following supplemental criteria:

38
39 a. Physical access to a solar generation station shall be restricted by fencing or
40 walls. Razor wire is prohibited. All fencing and wall details shall be provided
41 for review and approval as part of the required site plan.

- 1 b. The devices that capture energy and convert it to electricity shall not be
2 placed in wetlands, environmentally sensitive resources or habitats, imperiled
3 and critically imperiled habitats as defined by the Florida Natural Areas
4 Inventory, and buffers. Any environmental impacts from such devices, or any
5 component of a solar generation station, shall only be allowed in compliance
6 with the provisions of the County's Comprehensive Plan and Land
7 Development Code.
8 c. All devices that capture and convert energy to electricity shall be located at
9 least 50 feet from any lot line under separate ownership, unless otherwise
10 approved by the Board of County Commissioners.
11 d. The maximum lot coverage by structures, including solar ground or pole
12 mounted panels, for the zoning district may be waived by the Board of County
13 Commissioners. The approved maximum lot coverage shall be shown on the
14 site plan and specified in the resolution approving the development.
15 e. All solar generation station sites must comply with the landscaping and
16 screening requirements of the Land Development Code. The perimeter buffer
17 landscaping requirements may be waived by the Board of County
18 Commissioners, if it is shown to the satisfaction of the Commission that the
19 adjoining property owners have no objection to the landscaping waiver.
20 Interior vehicular use area landscaping requirements may be waived by the
21 Commission, to the extent necessary to ensure optimal solar access. The
22 Board of County Commissioners may require additional landscaping to
23 enhance compatibility with adjacent land uses.
24 f. On-site power lines shall be placed underground to the maximum extent
25 possible.
26

27 B. Solar Energy System. In addition to other applicable sections of this Code, a solar
28 energy system shall be subject to the following provisions:
29

- 30 1. All solar panels and devices are considered structures and subject to the
31 requirements for such, together with all other applicable building codes and
32 ordinances, unless otherwise provided for in this Code. Solar panels installed on
33 roofs are exempt from the building height requirements. Solar panels installed on
34 rooftops shall be located 2 feet from the roof edge.
35 2. Non-roof installed solar energy devices integrated into the architecture of the
36 building, such as the walls of the building, shall be no greater than 10 feet above
37 the maximum height requirements of the zoning district.
38 3. Ground or pole mounted systems shall be limited to a height of 10 feet above the
39 base floor elevation of the primary structure.
40 4. Solar energy systems shall not be located in front or side corner yards of any
41 parcel, unless the following are met: 1) the conditions of the side and back yards
42 prohibit the installation of a system, and 2) the lot is one acre or greater, and 3)

- adequate buffering along the adjacent roadway is provided, and 4) the location is approved by the Director of Planning and Development Services.
5. Solar ground and pole mounted systems less than six feet in height may encroach into the side and rear setback area, but in no case shall the system be located closer than five (5) feet from the property line. Where the system is higher than six feet in height the setback requirements of the zoning district shall apply.
 6. Solar collectors may be co-located on communication towers, and parking lot and street light poles, in which case the height and setback requirements for said tower/pole shall apply.
 7. All new exterior electrical lines and utility wires connecting a ground or pole mounted solar system to the building it serves shall be buried underground.
 8. The Board of County Commissioners may allow for a modification of these accessory use provisions when the proposed solar energy system will serve buildings within a planned development project. The modification shall be identified on the site plan graphics and within the resolution granting approval to the planned development.
 9. Waiver. In the event any of the provisions in this Section have the effect of prohibiting the installation of a solar energy system, the applicant shall have the right to apply for a waiver from these provisions to the Director of Planning and Development Services or designee. The Director may grant a waiver upon determining that strict application of the Code would result in prohibiting the installation of a solar energy system.
 10. Landscape Waiver. The Environmental Resources Director may waive the landscaping requirements of the Land Development Code to the extent necessary to ensure optimal solar access.
 11. Any approval of a solar energy system does not create any actual or inferred solar energy system easement against adjacent property and/or structures. The owner and/or property owner of a solar energy system shall not infer or claim any rights to protective writs to any caused shadows or operating ineffectiveness against future development adjacent to or higher than the property location of the solar energy system. The approval of any solar energy system granted by St. Lucie County shall not create any future liability or infer any vested rights to the owner and/or property owner of the solar energy system on the part of the County for any future claims against said issuance of approval of the solar energy system that result from reliance on this section or any administrative decision lawfully made thereunder.

CHAPTER VIII ACCESSORY AND TEMPORARY STURCTURES AND USES

8.00.00. Accessory uses and structures are hereby amended to create:

1 8.00.03. Particular Permitted Accessory Structures and Uses in Residential,
2 Agricultural, and Planned Unit Development Districts.

3
4 Section 8.00.03 is hereby amended as follows:

5
6 L. Solar energy system subject to the requirements of Section 7.10.28.(999)
7

8 **PART B. CONFLICTING PROVISIONS**
9

10 Special acts of the Florida Legislature applicable only to unincorporated areas of St. Lucie
11 County, County Ordinances and County Resolutions, or parts thereof, in conflict with this
12 Ordinance are hereby superseded by this Ordinance to the extent of such conflict.
13

14 **PART C. SEVERABILITY**
15

16 If any portion of this Ordinance is for any reason held or declared to be unconstitutional,
17 inoperative or void, such holding shall not affect the remaining portions of this Ordinance.
18 If this Ordinance or any provision thereof shall be held to be inapplicable to any person,
19 property, or circumstances, such holding shall not affect its applicability to any other
20 person, property or circumstances.
21

22 **PART D. APPLICABILITY OF ORDINANCE.**
23

24 This ordinance shall be applicable in the unincorporated area of St. Lucie County.
25

26 **PART E. CODIFICATION**
27

28 It is the intention of the Board of County Commissioners, and it is hereby ordained that
29 the provisions of this Ordinance shall become and be made a part of the Code of the
30 County of St. Lucie, Florida; that the Sections of this Ordinance may be renumbered or
31 re-lettered to accomplish such intentions; and that the word "Ordinance" shall be
32 changed to "Section" or other appropriate word.
33

34 **PART F. FILING WITH THE DEPARTMENT OF STATE**
35

36 The Clerk is hereby directed forthwith to send a certified copy of this Ordinance to the
37 Bureau of Laws, Department of State, The Capitol, Tallahassee, Florida, 32304.
38

1 **PART G. EFFECTIVE DATE**

2
3 This Ordinance shall take effect upon filing of a certified copy of this Ordinance with the
4 Department of State.
5

6 **PART H. ADOPTION**

7
8 After motion and second, the vote on this ordinance was as follows:
9

10	Chairman Charles Grande	AYE
11		
12	Vice Chairman Doug Coward	AYE
13		
14	Commissioner Chris Craft	AYE
15		
16	Commissioner Chris Dzadovsky	AYE
17		
18	Commissioner Paula A. Lewis	AYE
19		

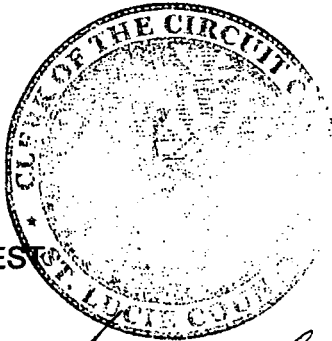
20 **PASSED AND DULY ADOPTED** this 9th Day of November, 2010.
21

22 BOARD OF COUNTY COMMISSIONERS
23 ST. LUCIE COUNTY, FLORIDA

24
25
26 BY _____
27

Chairman

28
29
30 ATTEST



31
32
33
34 _____
35 Deputy Clerk
36

APPROVED AS TO FORM
AND CORRECTNESS

County Attorney